

Judgment Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Crl. Appeal No.478/2012
(Irfan alias Imran alias Kadu vs. The State & another)

JUDGMENT

Date of hearing: 08.09.2021

Appellant by: Mr. Ghulam Farid Gurmani, Advocate.

State by: Mr. Ansar Yasin, Deputy Prosecutor General.

Complainant by: Nemo.

ALI ZIA BAJWA, J.:- Irfan alias Imran alias Kadu son of Liaquat Ali, caste Faqeer, resident of Mouza Mast Purah Basti Nawan Sher, Kabirwala, District Khanewal, appellant, was involved in case FIR No.30/2011, dated 15.01.2011, offence under Section 376, PPC, registered with Police Station Saddar Kabirwala. He was tried by learned Additional Sessions Judge, Kabirwala, under the afore-mentioned offence. Learned trial court vide its judgment dated 17.07.2012 convicted and sentenced the appellant in the following terms:-

- Under Section 376, PPC, sentenced to undergo R.I. for twelve (12) years with fine of Rs.50,000/- and in case of default in payment thereof, to further undergo S.I. for two months.
- Benefit of Section 382-B, Cr.P.C. was also extended in favour of the appellant.

The appellant assailed his conviction and sentence through the instant appeal.

2. The prosecution story as portrayed in the FIR (Exh.PA/1) lodged on the application (Exh.PA) of Muhammad Iqbal son of Sohara, caste Sipra, (PW-4) is that he is resident of Mouza Mastpura, District Khanewal and earns his livelihood through manual labour. On 13.01.2011, he had gone out for labour, when at about 3:00/4:00 p.m. Mst. Nagina Mai, his daughter, mentally retarded and handicapped, was present in her house. The appellant took daughter of the complainant to a deserted house, where he committed rape with her. On hue and cry raised by the victim, Ramzan son of Noor Muhammad Sipra and others attracted to the spot and on seeing them approaching, the appellant made good his escape.

3. After registration of the case, investigation was entrusted to Muhammad Sadiq, S.I. (PW-9). He, on 15.01.2011, along with other police officials visited the place of occurrence. He interrogated the victim and observed that she, being deaf and dumb and mentally retarded, was unable to make statement. He prepared rough site plan of the place of occurrence (Exh.PC) and recorded statements of the prosecution witnesses under Section 161, Cr.P.C. On 13.02.2011, appellant was arrested in this case and his blood sample was sent to Centre for Applied Molecular Biology Laboratory, Lahore for DNA test along with vaginal swabs of the victim and her *shalwar* which she was wearing at the time of occurrence. On 17.02.2011, potency test of the appellant was also conducted. During the course of investigation having found the appellant guilty, Investigating Officer submitted report under Section 173, Cr.P.C. while placing his name in column No.3.

4. After submission of report under section 173 Cr.P.C, learned trial court formally indicted the accused to which he pleaded not guilty and

claimed trial. Prosecution in order to establish its case produced as many as nine (9) prosecution witnesses.

Muhammad Iqbal (PW-4) is complainant of the case. Ramzan (PW-5) and Nazar Hussain (PW-6) are witnesses of ocular account. Lady Doctor Hina Abbas (PW-1) medically examined Mst. Nagina Mai-victim. Dr. Saif-ur-Rehman, Medical Officer (PW-2) conducted potency test of the appellant. Statements of rest of the prosecution witnesses are, more or less, formal in nature.

5. After completion of the prosecution evidence, statement of the appellant as provided under Section 342 Cr.P.C. was recorded by the learned trial Court. He professed innocence and pleaded false implication in the case. Neither he opted to appear as witness in his own defense and get recorded his statement on oath under Section 340(2) Cr.P.C. nor produced any defence evidence. Upon completion of trial, the learned trial court found the prosecution case proved to the hilt, thus, convicted and sentenced the appellant as mentioned and detailed above.

6. Arguments heard, record perused.

7. There is no cavil to this proposition that it is a brutal and vicious occurrence in which a mentally retarded and physically handicapped female, daughter of the complainant, was subjected to sexual assault. The callousness of the offence, undoubtedly, cannot be tolerated in any manner whatsoever but at the same time this Court has to assess from the facts and circumstances, whether evidence produced by the prosecution during the course of trial is sufficient to maintain the conviction recorded against the appellant.

8. Prosecution case consists of ocular account, medical evidence in the shape of medical examination of the victim, potency test of the appellant and DNA report.

9. There is no denial to the fact that the complainant is not the eyewitness of the occurrence, whereas ocular account in this case consists of the statements of Muhammad Ramzan (PW-5) and Nazar Hussain (PW-6). Prosecutrix Nagina Mai was declared incompetent witness, due to her mental health, by the trial court as envisaged under Article 3 read with Article 17 of Qanoon-e-Shahadat, 1984, therefore, her statement during the course of trial could not be recorded. For better understanding aforementioned Articles are reproduced infra:

3. Who may testify

All persons shall be competent to testify unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other use of the same kind:

Provided that a person shall not be competent to testify if he has been convicted by a Court for perjury or giving false evidence:

Provided further that the provisions of the first proviso shall not apply to a person about whom the Court is satisfied that he has repented thereafter and mended his ways:

Provided further that the Court shall determine the competence of a witness in accordance with the qualification prescribed by the Injunctions of Islam as laid down in the Holy Quran and Sunnah for a witness, and, where such witness is not forthcoming the Court may take the evidence of a witness who may be available.

Explanation. A lunatic is not incompetent to testify, unless he is prevented by his lunacy from understanding the questions put to him and giving rational answers to them.

17. Competence and number of witnesses

(1) The competence of a person to testify and the number of witness required in any case shall be determined in accordance with the Injunctions of Islam as laid down in the Holy Quran and Sunnah.

(2) Unless otherwise provided in any law relating to the Enforcement of Hudood or any other special law:

- (a) in matters pertaining to financial or future obligations, if reduced to writing, the instrument shall be attested by two men, or one man and two women, so that one may remind the other, if necessary, and evidence shall be led accordingly; and*
- (b) in all other matters, the Court may accept, or act on, the testimony of one man or one woman, or such other evidence as the circumstances of the case may warrant.*

Plain scrutiny of the above provisions of Qanoon-e-Shahadat, 1984 reveals that the essential condition for any person to appear and testify as a witness in a court of law is that he/she should possess the capability and intellect of understanding the questions put to him/her, and also be able to rationally respond thereto. This threshold has been referred to as passing the "*rationality test*", and the practice that has developed with time in our jurisdiction is for the same to be carried out by the presiding Judge prior to recording the evidence of a witness.¹

10. On scrutiny of statements of eye-witnesses, this Court has observed that Muhammad Ramzan (PW-5) is maternal uncle (mamoon) of the complainant while Nazar Hussain (PW-6) is cousin of the complainant. Hence, one way or the other, both the prosecution witnesses are related inter-se, as well as, to the complainant and victim. In this background, their presence at the place of occurrence at the relevant time and response shown by them on hearing the hue and cry raised by the victim, as well as, their reaction to rescue the victim and catch hold of the perpetrator, when admittedly he was not armed with any firearm weapon, is of pivotal importance. While going through statements of PW-5 and PW-6, it has been noticed that their statements are at variance qua their reaction on attracting to the place of occurrence and seeing the appellant allegedly in naked condition. Muhammad Ramzan (PW-5) claims that they had put effort to

¹ RAJA KHURRAM ALI KHAN V. TAYYABA BIBI - PLD 2020 SC 146

apprehend the appellant, however, he fled away. Relevant portion of his statement is reproduced as under:-

“We put effort to caught hold the accused but he successfully ran away through the broken wall.”

However, contrary to above, stance of Nazar Hussain (PW-6) is that on seeing the occurrence, they did nothing. Relevant extract out of his statement is reproduced as under:-

“We did nothing after seeing the occurrence.”

11. Another important aspect of the case is that although both the prosecution witnesses are closely related to the victim but on reaching house of the complainant, they opted to wait for his return and didn't report the matter to the police promptly. Record does not disclose whether they had attempted to make any effort whatsoever to establish contact with the complainant through phone to inform him about such a shocking occurrence. Moreover both the prosecution witnesses are inconsistent with regard to distance between the place of occurrence and house of the victim. All these facts when taken conjointly create dents with regard to presence of the prosecution witnesses at the place of occurrence as claimed by them.

12. As far as medical evidence in this case is concerned, according to prosecution theory of case, occurrence took place on 13.01.2011 at 3:00 p.m. Doctor medically examined the victim on 14.01.2011 at 4:20 p.m. Important aspect of the case is that at the time of medical examination of the victim, the doctor obtained vaginal swabs, which were dispatched to the Centre for Applied Molecular Biology Laboratory, Lahore along with her *Shalwar*, blood samples of the victim and the appellant. DNA report available on record as Exh.PE suggests that sperm fractions in vaginal swabs and stains on the shalwar did not match with the profile of the appellant rather sperm fractions were of some unknown person. Moreover, DNA profile reveals that sperm fraction obtained from vaginal swabs and stains on

the *shalwar* of the prosecutrix were of one unknown male, which means that although victim was subjected to sexual assault by some unknown person but it was not the appellant. Relevant portion of the report is reproduced as under:-

Conclusion:

An unknown male individual is the source of DNA found in sperm fraction of item 2.1 and as a major component of DNA in sperm fraction of item 1.0.

Accused Irfan Shah @ Imran @ Kaddu s/o Liaqat Ali (item 4.1) is excluded as being the source of male DNA found in sperm fraction of item 1.0 and 2.1.

It is consistent view of the superior courts of the country² that DNA technology is the mean of identifying perpetrator with a high degree of confidence. It has been held in a recent verdict³ of Honorable Supreme Court of Pakistan that DNA test not only plays a vital role in bringing the actual culprits to book but it is also very helpful to exonerate the innocent. DNA test is considered, due to its scientific accuracy and conclusiveness, as a gold standard to establish the identity of an accused.⁴ It was held in Para No. 5 of **ALI HAIDER alias PAPU Versus JAMEEL HUSSAIN and others – PLD 2021 SC 362** that:

The most significant advancement in criminal investigation since the advent of fingerprint identification is the use of DNA technology to help convict criminals or eliminate persons as suspects. DNA as a scientific evidence means 'deoxyribonucleic acid.' DNA can be found in the human body and samples from semen, hair, blood, flesh can establish a DNA matching with the DNA of another human being. Each human being has a unique DNA pattern, which is acquired by inheriting it from the biological parents. DNA analyses on saliva, skin tissue, blood, hair, and semen can now be

² Salman Akram Raja v. GOP - 2013 SCMR 203, Atif Zareef v. State – PLD 2021 SC 550, Muhammad Aqeel v. State – 2021 YLRN LHR, Gulzar Shah v. State – 2021 MLD 69

³ Ali Haider Alias Papu Versus Jameel Hussain And Others – PLD 2021 SC 362

⁴ Atif Zareef v. State – PLD 2021 SC 550

reliably used to link criminals to crimes. Increasingly accepted during the past 10 years, DNA technology is now widely used in many jurisdictions by police, prosecutors, defense counsel, and courts.³ This scientific evidence is much speedier, specific, accurate and conclusive than any other human evidence and can stand the scrutiny of the court to determine the guilt or innocence of an accused. In criminal cases, like rape, murder, etc., timely medical examination and proper sampling of body fluids followed by quality forensic analysis can offer irrefutable evidence. Criminal justice system is in search for the truth. The development of DNA technology furthers the search for truth by helping police and prosecutors in the fight against violent crimes. Through the use of DNA evidence, prosecutors can establish the guilt of accused and at the same time, DNA aids the search for truth by exonerating the innocent.⁴ An authoritative study on the forensic uses of DNA, conducted by the National Research Council of the National Academy of Sciences, USA has noted that:

"...the reliability of DNA evidence will permit it to exonerate some people who would have been wrongfully accused or convicted without it. Therefore, DNA identification is not only a way of securing convictions; it is also a way of excluding suspects who might otherwise be falsely charged with and convicted of serious crimes."

When it is observed by the forensic scientist that the sperm fraction extracted from vaginal swabs is identical to the sperm fraction extracted from the stains available on shalwar of the victim, which are of some other person rather than that of the appellant, it shall prove fatal to the prosecution case. In the present case best possible evidence available is DNA test, which does not support the prosecution version, rather it is sufficient to demolish the edifice of prosecution case.

13. There is another distressing and unacceptable aspect of this case, which requires to be deprecated by this court to impede the miscarriage of justice in future. Although DNA report was exhibited in evidence as EX:PE and was also put to accused under section 342 Cr.P.C. but learned trial judge

did not utter a single word qua that report, either to accept it or discard the same, while pronouncing the impugned judgment of conviction. Such indifferent attitude of the trial court, which resulted in conviction of present appellant, is in conflict with the fundamental norms of justice and right to fair trial as guaranteed under Article 10-A of the constitution of Pakistan, 1973. Every Court of law is obliged to consider entire evidence available on the record before pronouncing a judgment of conviction or acquittal. Term evidence has been defined in Article 2(c) of Qanun-e-Shahadat Order, 1984 as under:

(c) "Evidence" includes;

(i) all statements which the Court permits or requires be made before it by witnesses, in relation to matters of fact under inquiry ; such statements are called oral evidence ; and

(ii) all documents produced for the inspection of the Court; such documents are called documentary evidence ;

The above quoted provision of law makes it abundantly clear that evidence includes both statements in oral form and documents produced before the court for evaluation. While appraising the evidence, it is incumbent upon the court to carefully peruse, read and consider each and every piece of evidence, both oral as well as documentary, and then draw a definitive conclusion. Arriving at a decision without considering entire evidence available on the record shall definitely lead to miscarriage of justice. It was pronounced by the esteemed Supreme Court of Pakistan in a recent verdict in **NAVEED ASGHAR and 2 others Versus The STATE - PLD 2021 SC 600** as under:

“Cases are to be decided on the basis of evidence and evidence alone and not on the basis of sentiments and emotions”

“It is, therefore, duty of the court to assess the probative value (weight) of every piece of evidence available on record in accordance with the settled principles of appreciation of

evidence, in a dispassionate, systematic and structured manner without being influenced by the nature of the allegations. Any tendency to strain or stretch or haphazardly appreciate evidence to reach a desired or popular decision in a case must be scrupulously avoided or else highly deleterious results seriously affecting proper administration of criminal justice will follow”

In **State of U.P. v. Anil Singh - AIR 1988 SC 1998** the Court made following observations:

“It is the duty of the court to cull out the nuggets of truth from the evidence”

That above-referred judicial prescriptions unequivocally reiterate that it is bounden duty of every Court to consider evidence in toto before declaring a person guilty or innocent, and any deviance therefrom shall not be in consonance with the universal principles of safe administration of justice.

14. It is golden principle of law that Court may err in letting off 100 guilty but should not convict one innocent person.⁵ Doubt pervades most laws, becomes alarming when it arises in criminal law and seems especially discomfiting in the context of Islamic criminal law.⁶ The concept of benefit of doubt is decade tested principle of criminal justice system and has its roots in Islamic law. While extracting wisdom from the Hadith of our Holy Prophet (PBUH), which is the foundation of rule of benefit of doubt, Supreme Court of Pakistan while elaborating this rule held in **Ayub Masih V. The State – PLD 2002 SC 1048** in Para No. 10 as infra:

“It will not be out of place to mention here that this rule occupies a pivotal place in the Islamic law and is enforced rigorously in view of the saying of the Holy Prophet (P.B.U.H)

⁵ Muhammad Sajjad Alias Shehzad V. The State - 2017 YLR 156, Manzar-Ul-Haq Shah Jahan V. The State and Another -2016 YLR 797 & Riasat Ali V. The State - 2013 Y L R 272

⁶ "Reasonable Doubt" in Islamic Law Intisar A. Rabbl available on ["Reasonable Doubt" in Islamic Law \(yale.edu\)](http://www.yale.edu)

that the "mistake of Qazi (Judge) in releasing a criminal is better than his mistake in punishing an innocent."

15. All the above narrated facts and circumstances when evaluated on the yardstick of judicial prescriptions laid down in various judgments, reflect that the prosecution has miserably failed to bring on record any convincing and reliable evidence/material to establish that it was the appellant, who committed the alleged occurrence rather the negative DNA report qua the appellant shattered the entire prosecution case. It is established principle of law that for extending benefit of doubt, it is not necessary that there should be several circumstances, rather one reasonable doubt is sufficient to acquit an accused, not as a matter of grace but as of right. Respectful reliance can be placed on verdict rendered by prestigious Supreme Court of Pakistan in **Najaf Ali Shah vs. The State (2021 SCMR 736)** wherein it was held as infra:

"It is a well settled principle of law that for the accused to be afforded this right of the benefit of the doubt it is not necessary that there should be many circumstances creating uncertainty and if there is only one doubt, the benefit of the same must go to the petitioner"

Same principle was also reiterated in **The STATE through P.G. Sindhand others Versus AHMED OMAR SHEIKH and others - 2021 SCMR 873**

"Even if a single circumstance create reasonable doubt in a prudent mind regarding guilt of an accused then the accused shall be entitled to such benefit not as a matter of grace and concession but as a matter of right and such benefit must be extended to the accused person(s) by the Courts without any reservation"

16. The case in hand is a textbook case of defective investigation and poor appreciation of evidence by the trial court, exposing the flaws of our criminal justice system. It is evident from the DNA report that prosecutrix, a dumb and deaf female, was subjected to sexual assault but

actual culprit could not be brought to book, rather an innocent person faced the agony of trial and conviction. It can be termed a '*case of miscarried justice*' in which both victim and appellant were denied justice.

17. In the circumstances discussed above, this Court is fully convinced that the prosecution has miserably failed to prove its case against the appellant beyond reasonable doubt, therefore, while **allowing Crl. Appeal No.478/2012**, the conviction and sentence recorded by the learned trial Court are **set aside** and the appellant Irfan alias Imran alias Kadu is **acquitted** of the charge, while extending him benefit of doubt. The sentence of the appellant was suspended by this Court vide order dated 21.01.2014, hence, his sureties stand discharged from their liabilities.

(ALI ZIA BAJWA)
JUDGE

Approved for Reporting

Riaz